

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION

STEPHEN RUSSELL, an individual

Plaintiff,

v.

No. CGC-18-570137

TARA WALSH, an individual; and

DOES 1-20,

Defendants.

TARA WALSH, an individual

Cross-Complainant,

v.

STEPHEN RUSSELL, an individual;

and DOES 1-10,

Cross-Defendants.

ZOOM DEPOSITION OF BRIENNE WALSH

Savannah, Georgia

Monday, September 28, 2020

Volume 1

Reported by:

KELLY WILLIAMS

CSR No. 6442

JOB No. 4226222

PAGES 1 - 240

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION

STEPHEN RUSSELL, an individual
Plaintiff,

v. No. CGC-18-570137

TARA WALSH, an individual; and
DOES 1-20,

Defendants.

TARA WALSH, an individual

Cross-Complainant,

v.

STEPHEN RUSSELL, an individual;
and DOES 1-10,
Cross-Defendants.

Zoom deposition of BRIENNE WALSH, taken on
behalf of Plaintiff, at Savannah, Georgia, beginning at
12:06 p.m. and ending at 6:13 p.m., on Monday, September
28, 2020, before KELLY WILLIAMS, Certified Shorthand
Reporter No. 6442.

1 APPEARANCES:

2 (Appearing via Zoom)

3 For Plaintiff:

4 CONRAD & METLITZKY

5 BY: COURTNEY AASEN and JOSHUA WHITE

6 Attorney at Law

7 4 Embarcadero Center, Suite 1400

8 San Francisco, California 94111

9 (415) 343-7108

10 caasen@conradmelitzky.com

11 jwhite@conradmelitzky.com

12

13 (Appearing via Zoom)

14 For Defendants:

15 SCHWARTZ, SLADKUS, REICH, GREENBERG & ATLAS, LLP

16 BY: RACHAEL RATNER

17 Attorney at Law

18 444 Madison Avenue, 6th Floor

19 New York, New York 10022

20 (212) 743-7050

21 rratner@ssrga.com

22

23 Also Present:

24 Terrence Weiss, Videographer

25

1 Q. I'll repeat my question. Would you
2 characterize your childhood as abusive? 14:33

3 MS. RATNER: Objection. Asked and answered.

4 MS. AASEN: I don't believe I've gotten an
5 answer to that question.

6 THE WITNESS: The answer would I characterize
7 my childhood as abusive is a really broad question. I
8 would ask you to kind of narrow it down.

9 MS. AASEN: Q. Do you understand the term
10 "abusive"?

11 A. Yes, of course, yeah.

12 Q. I'm asking you to think back on your childhood
13 and to just -- and if you had to describe it, would 14:34
14 abusive be one way that it could be described?

15 MS. RATNER: Objection.

16 You can answer, Brie.

17 THE WITNESS: Yes, I would.

18 MS. AASEN: Q. Okay. Did Tara grow up in the
19 same environment as you?

20 A. No, she grew up in a different house -- no,
21 I'm just kidding. Yeah, she grew up in the same
22 environment.

23 Q. Okay. And -- okay. Would it be fair to say 14:35
24 that Tara grew up in the same environment that you just
25 described as abusive?

1 MS. RATNER: Objection.

2 THE WITNESS: I didn't just describe it as
3 abusive. I said that on occasion I might use that word
4 to describe my childhood.

5 MS. AASEN: Q. Would you describe the
6 environment in which you grew up as abusive?

7 MS. RATNER: Objection. Asked and answered.

8 THE WITNESS: Not always. 14:35

9 MS. AASEN: Q. Not always, is that your
10 answer?

11 A. Yes.

12 Q. Okay. In what ways was it abusive?

13 A. I would have to ask you to be more specific.

14 Q. Okay. You described -- I've asked if your --
15 the environment in which you grew up was abusive, and
16 you said --

17 A. Right.

18 Q. -- not always?

19 A. Okay.

20 Q. Is it fair to say that that means that the 14:36
21 environment was sometimes abusive?

22 A. Yes, that's what I meant.

23 Q. I'm asking you to describe what kind of abuse
24 was in the environment in which you grew up.

25 A. I guess that I'm having trouble just because

1 it's such a broad question. I lived at home for 18
2 years, so I would, I guess, need more -- more
3 specific -- it would be hard for me to answer that
4 question concisely.

5 Q. Sure. Can you think of any example of 14:36
6 something -- of an event that happened in your childhood
7 that you would -- that would fall under what you
8 described as abusive?

9 A. I think it would really depend on how you
10 would define abusive.

11 Q. How do you define abusive?

12 A. I don't know. I really -- I haven't come
13 prepared, I guess, with answers about my childhood.

14 Q. I believed a couple minutes ago I asked you if
15 you understood the term "abusive," and your response was
16 "of course"?

17 A. Yes, yes, of course. 14:36

18 Q. I'm trying to understand how you understand
19 the term abusive.

20 A. Okay. So please ask the questions.

21 Q. How do you understand the term abusive?

22 A. The way that I understand the term abusive is
23 that an abusive -- again, I -- I'm not prepared to
24 answer this question. You'd have to give me a minute.
25 Do you want to take a break? I would prefer to just

1 keep on going. If you want to ask me specific questions
2 about abuse, I'm happy to answer them. 14:37

3 Q. I'm looking for any examples you can provide
4 of -- of why you're characterizing sometimes the
5 environment you grew up in as abusive.

6 A. Right. I think that on occasion my mom could
7 withhold food from us, and that was abusive.

8 Q. You said "from us." Do you mean you and all
9 of your siblings?

10 A. No, me and my sister Tara.

11 Q. Okay. What -- why -- what were the
12 circumstances that would lead your mother to withhold 14:38
13 food from you?

14 A. I don't recall.

15 Q. Okay. Do you remember any specific single
16 instance in which your mother withheld food from you and
17 Tara?

18 A. I don't recall right now, no.

19 Q. So sitting right here, you can't think of any
20 specific time that this happened to you and Tara?

21 A. Again, I -- I came prepared to answer
22 questions about the case at hand, not about my 14:38
23 childhood, so I'd have to really look back and provide
24 you with more specific -- I don't want to go on the
25 record saying something that I cannot take back. You

1 know, I'd have to prepare.

2 Q. I'm just asking you today, sitting here today
3 right now --

4 A. Yes, I understand, but I'm on the record, and
5 I know this pertains to the child custody case, so I'm
6 not going to say something without preparation. You'd
7 have to really subpoena me to specifically talk about my
8 childhood, I guess.

9 Q. Okay. 14:38

10 MS. RATNER: Why don't we leave a blank in the
11 transcript, and we can move on.

12 MS. AASEN: I was about to move on.

13 Q. I am sharing exhibit -- I'm sorry, I'm sharing
14 a document that has been marked as Exhibit 16. 14:39

15 (Plaintiff's Exhibit No. 16 was marked) 14:40

16 MS. AASEN: Sorry, it's still loading for me.

17 THE WITNESS: Yes, I see.

18 MS. AASEN: Q. Do you recognize this
19 document?

20 A. Yes, it's blog post.

21 Q. Okay. Sorry, it's still not popping up for me
22 yet. Okay. If you could turn to the second page? 14:40

23 A. Uh-huh.

24 Q. You write "I think that after my traumatic
25 childhood being raised by a narcissist who used to call

1 me a 'son of a bitch,' almost any life seemed better."

2 Did I read that correctly?

3 A. You know, yes, you did, and I need to take a
4 break. I'm really sorry.

5 Q. Okay.

6 A. Is that okay? Can we take just five minutes? 14:41

7 Q. We'll take a five-minute break.

8 A. Okay.

9 THE VIDEOGRAPHER: We're now going off the
10 record. The time is 2 -- 2:41. 14:41

11 (Recess taken) 14:46

12 THE VIDEOGRAPHER: We're now back on the
13 record. The time is 2:46.

14 MS. AASEN: Q. Okay. Right before we took a
15 break we were looking at a document that has been marked 14:46
16 as Exhibit 16. Do you have that document --

17 A. Right.

18 Q. -- in front of you?

19 A. Yes.

20 Q. And I believe I misspoke earlier. I said page
21 2, but I believe it's actually page 3 that we were
22 looking at.

23 A. Yes, I figured that out...

24 Q. And I had pointed you to the specific line
25 that begins with "I think that." Do you have that line

1 in front of you?

2 A. Yes, I do, and I want to reiterate something
3 that I've been saying a few times around, and that is
4 that I use hyperbole on my blog -- 14:46

5 Q. Yes.

6 A. -- to describe things, and I'd also like to
7 reiterate that I can't speak to my sister's childhood.
8 I can only speak to my own so...

9 Q. Would you -- I'm sorry?

10 A. Sorry, if you continue with the questions,
11 please.

12 Q. Now, you mentioned that you use hyperbole on
13 your blog?

14 A. Yes.

15 Q. Is this more what I've just read an example of
16 hyperbole?

17 A. The line that you just read, could you read it 14:47
18 again? I'm sorry.

19 Q. Sure. It's the line on page 3.

20 A. Yes.

21 Q. It's the fifth paragraph. "I think that after
22 my traumatic childhood being raised by a narcissist who
23 used to call me a 'son of a bitch' almost any life
24 seemed better." Is that an example --

25 A. Yes.

1 Q. -- of hyperbole?

2 A. I think that I have a very complicated
3 relationship with my parents. I would not characterize
4 my childhood as unsafe in any way. I was never in any
5 physical danger of harm. I was provided with three 14:48
6 meals a day. I was loved and taken care of. There are
7 mental health issues in my family, but I don't think
8 that they go beyond the scope of what many families
9 suffer from.

10 Q. Why did you choose to use the word "traumatic"
11 in this sentence?

12 A. It's traumatic emotionally to deal with mental
13 health issues. I think most people who have dealt with
14 that kind of stuff would agree or understand that, so I
15 think traumatic in the sense that it can be very painful 14:48
16 to talk about, write about, think about, things like
17 that.

18 Q. You said -- you use the phrase "being raised
19 by a narcissist." Who are you referring to when you say
20 "narcissist"?

21 A. My mother.

22 Q. Okay. You mentioned --

23 A. I want to clarify something. My mom has never
24 been diagnosed with narcissism, that that would be a
25 good example of a word that I use that should not be 14:48

1 taken as fact or any kind of, you know -- my mother has
2 never been diagnosed by a psychiatrist as a narcissist
3 or by any doctor ever; but this is again something that
4 I'm writing to express an emotion that's not necessarily
5 accurate, if that makes sense.

6 Q. Understood. And you had just mentioned
7 earlier when we were talking about your use of the term
8 "traumatic," you mentioned that there were mental health
9 issues in your family?

10 A. Yes. We talked about that. We said that my 14:49
11 sister has been diagnosed with bipolar disorder and
12 ADHD, so, yes, there are mental health issues.

13 Q. Are there any other people in your family with
14 mental health issues?

15 A. Yes.

16 MS. RATNER: Objection.

17 MS. AASEN: Q. Do your parents have mental
18 health issues?

19 MS. RATNER: Objection.

20 THE WITNESS: I don't know.

21 MS. AASEN: Q. Sorry, what was your response?

22 A. My response is I don't know. I can conjecture
23 that behavior, but I've never been with them to their
24 doctor. I've never seen a prescription that they take, 14:49
25 nothing like that.

1 Q. You've never spoken with them about any mental
2 health issues?

3 A. No, I have not.

4 Q. Okay.

5 A. My parents are much more private than I am.

6 Q. Now, you describe that growing up in an
7 environment where there were mental health issues was 14:50
8 traumatic for you. Would you characterize Tara's
9 childhood the same way?

10 A. I can't speak to my sister's childhood. You'd
11 have to ask her directly.

12 Q. From what you witnessed, would you describe
13 it --

14 A. From what I witnessed, I can't recall. I just
15 remember my own experience.

16 Q. I'm sorry, we just need to not speak over each
17 for the court reporter.

18 A. Oh.

19 Q. It's difficult for her to transcribe. 14:50

20 A. Right.

21 Q. Okay. I am going to share another exhibit.

22 Now I've just shared a document that has been
23 marked as Exhibit 17.

24 (Plaintiff's Exhibit No. 17 was marked) 14:51

25 A. To be honest, this is a long time ago. I

1 don't remember even writing this it's so long ago; so
2 anything that I say, I don't -- well, go ahead ask
3 questions.

4 Q. Okay. Do you recognize this document?

5 A. I see that it's from my blog, yeah.

6 Q. Okay. Since you brought up that it's from a
7 long time ago, I'll just mention that the date at the
8 bottom says March 29th, 2016?

14:51

9 A. Yes.

10 Q. Is that correct?

11 A. Yes.

12 Q. Okay. I'd like to direct you to the second
13 page of this post.

14 A. Okay.

15 Q. And the second paragraph if you could read
16 that.

17 A. I'm sorry, I'm not sure, is it the paragraph
18 below the second picture?

19 Q. Yes, it's the one beginning "In the very
20 recent past."

21 A. Yes. "In the very recent past, this film
22 would have reminded me of my own family. Fighting,
23 horror, emotional abuse. I bet some of my aunts would 14:52
24 have participated in a film they made about my mother,
25 and then for the next decade or so I would have lived in

Page 111

1 the misery of a family-less vacuum." Again, I think
2 that this is a good example when I'm trying to be funny.

3 Q. Okay. So this paragraph you're saying is
4 supposed to be humor?

5 A. Yes.

6 Q. When you wrote "fighting, horror, emotional
7 abuse," is that grounded in truth?

8 A. Yes, I mean, I just -- I guess that I told you 14:52
9 that I kind of have a complicated emotional history with
10 my family, and from my perspective it has been
11 difficult, but I can't speak to anybody else's
12 perspective.

13 Q. Okay. Was fighting something that happened in
14 the environment in which you grew up?

15 MS. RATNER: Objection.

16 THE WITNESS: Yes, fighting, of course. It
17 was a family of six kids.

18 MS. AASEN: Q. Okay. And did -- have you 14:53
19 ever -- sorry, did Tara experience fighting with your
20 family members?

21 A. I can't speak to that. I'm sorry, I don't
22 recall.

23 Q. Did you ever witness any fighting with Tara
24 and other family members?

25 A. I can't recall.